



SNAP Citizenship Requirement

Policy 24.09

Effective: August 1, 2020

Introduction

The Tennessee Department of Human Services (TDHS) shall confirm all Supplemental Nutrition Assistance Program (SNAP) household members meet federal and state guidelines for citizenship and alien status requirements.

Scope

This policy was developed to outline the requirements for obtaining and verifying eligibility based on Citizenship and Alien status for all SNAP recipients.

Policy

As a condition of eligibility to receive SNAP, an individual must be a citizen of the United States, or a qualified alien who has been lawfully admitted for permanent residence

Verifying Citizenship

An applicant's statement that all members of the household are U.S. Citizens will be verified only when the statement is inconsistent or questionable with other information on the application, on previous applications, or on other documented information known to the worker. When an applicant's statement that one or more of the household member's citizenship is questionable, the worker will ask the person to provide acceptable verification of citizenship. Acceptable forms of verification include birth certificates, religious records, voter registration cards, certificates of citizenship or naturalization provided by United States Citizenship and Immigration Services (USCIS), such as Identification Cards for use of Resident Citizens in the U.S., or U.S. passports. USCIS documents are the primary source for verifying alien status.

A Qualifying Alien Status of any individual applying for SNAP must be verified prior to approval or certification. The Systematic Alien Verification for Entitlements (SAVE) system will be used to validate the alien's documents and status.

Individuals that are not US Citizens or qualified aliens, or if the worker is unable to verify immigration status, are ineligible to receive benefits. The income of the excluded household

member must be prorated evenly among the remaining household members. The resources of the excluded household member must be counted in full to the remaining household members.

If it is questionable that a household member is a U.S. Citizen or qualified alien, prompt action shall be taken on the SNAP application to treat the member as an excluded household member until it can be verified the member is eligible. An assistance group with a member who does not meet the criteria of citizenship or alien status will not prevent the remainder of the SNAP household from applying for and, if eligible, receiving benefits.

Supporting Documents

[Qualified Aliens](#) (Internal Use Only)

[Sponsored Aliens](#) (Internal Use Only)

[Alien Status Desk Guide](#) (Internal Use Only)

[SNAP Policy 24.07: SNAP Non-HH Members and Excluded HH Members](#) (Internal Use Only)

[Treatment of Income, Resources, Income, and Deductible Expenses of Excluded HH Members](#)
(Internal Use Only)

Treatment of Income, Resources, and Deductible Expenses of Non-HH Members (Internal Use Only)

Definitions/Acronyms

Term	Definition
Applicant	1. An applicant is a person who has submitted a completed and signed document prescribed by TDHS requesting SNAP, and/or a form approved by Food and Nutrition Service (FNS) containing at least a legible name, address and a signature to request SNAP for the household of which he/she is a member. 2. An authorized representative or designated agent may actually file the application provided they have been authorized to do so by the head of the household, spouse, or other responsible household member.
Application or Application Form	An application is a form prescribed by Tennessee Department of Human Services (TDHS) and/or approved by FNS containing prescribed information which is submitted to the County Office of the TDHS by a person requesting assistance, or by the person's legally appointed guardian, designated agent or authorized representative. For Supplemental Nutrition Assistance Program (SNAP) purposes, an initial application is the first month for which the household applies for participation, following any period during which the household was not certified for participation in SNAP.
Household	A household is a social unit comprised of varying numbers of individuals who live together in the same dwelling. It is also the concept used to determine the food purchasing and preparation patterns of all individuals with common living quarters. For SNAP purposes, a group of people who customarily purchase and prepare food together for home consumption. For program purposes, an individual living alone may be a household.
SAVE	Systematic Alien Verification for Entitlements
SNAP	Supplemental Nutrition Assistance Program
TDHS	Tennessee Department of Human Services
U.S.	United States
USCIS	United States Citizenship and Immigration Services

Supersedes

SNAP Policy Manual Chapter 6, Effective 7/13/2017; Bulletin No. 5 FA-10-03; Bulletin No. 35 FA-07-16; Bulletin No. 11 FA-09-09; Bulletin No. 41 FA-09-20

Authority

7 CFR §§ 273.4,

Tenn. Code Ann. §§ 71-5-305,

Tenn. Comp. R. & Regs. 1240-1-3-.08-14

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
07/27/2020	08/01/2020	New Policy	Information pulled from previous manual. No major content changes.

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Danielle Barnes	Commissioner	07/27/2020	08/01/2020

Current Approver